

IA 5/2026 — EXECUTIVE SUMMARY

A) THE APPLICATION

- 1) Restrain D2 from altering the status quo (pendente lite to OS 84/24, OS 243/24 and this OS). Do not allow the public into the heritage property. (see C5)

B) PRIMA FACIE — A VOID, SELF-DEALING LEASE

- 1) IA 5/2025 was “closed on affidavit”, not merits. On 16.02.2026 D2 swore “nothing material has been concealed”; when challenged, D2 produced 4 docs on 18.05.2026, destroying his affidavit. (Chengalvaraya). (see B8, B9, B11)
- 2) On this property, this court has already found no prima facie case for D2, and that the Plaintiff would be “denuded” of his right (OS 243/2024, 03.12.2025). (see J)
- 3) D2 alone signed the lease — no co-trustee, no prior resolution before the lease; Trustees “ratified” 89 days later, while three OS pending (see L1, L2, L3)
- 4) D2 engineered his own lessee — D2’s NOC seated it at the Meda, his electricity bill was its address proof, GST registration — weeks before ratification. (see N1-3)
- 5) A flat Rs 60,000/month for 10 years — no rent increase, no security deposit, no valuation, no competing bids— for a property worth 15+ crore. (see M1, M2)
- 6) Next 14 years rent to repay D2 and son’s “no account” debt Rs 1.01cr. (see N6)
- 7) Even the ratification, 89 days later, authorizes D2 to lease ONLY the Meda (plinth <5 Ares) for 10 years. Without any authorization D2 leased out 29+ Ares for 10 years. D2’s AGOP, MOA and four leases are still not produced. (see M3, M4, H2)

C) IRREPARABLE INJURY — THE HERITAGE CANNOT BE UNDONE

- 1) The 120-year Meda and 400-year Nalukettu are family homes for their entire history. They are being turned into a commercial ayurvedic centre; the lessee is approved to “build a treatment block”, a permanent structure. (see Q4, I1, I2)
- 2) Antiques were handed to the lessee before any inventory; two valuables are already reported missing in IA 9/2025. (see P3, P5)

D) BALANCE OF CONVENIENCE

- 1) D2 loses nothing; the Trust has already lost crores, and now its heirlooms too; for the next 14 years the rent will flow to D2, not to it. (see R3, R4, R5).
- 2) Plaintiff is shut from his childhood home for up to 10/20 years. (see R2, R5, R6)

E) RELIEF

- 1) Restrain D2 from altering the status quo and from allowing the public into the property; hold the status quo of antiques pending trial. (see C5, C3)